SAMPLE M&A ANALYZER DOCUMENT

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PROJECT NIGHTINGALE

ASSET PURCHASE AGREEMENT

This Asset Purchase Agreement ("Agreement") is entered into as of March 1, 2026, by and between:

BUYER: MedTech Horizon Partners, LLC,
a Delaware limited liability company ("Buyer")

SELLER: CareData Systems, Inc.,
an Oregon corporation ("Seller")

RECITALS

WHEREAS, Seller operates a cloud-based patient data management and analytics platform serving regional hospitals, assisted living facilities, and independent physician practices ("Business"); and

WHEREAS, Buyer desires to purchase substantially all assets used in the Business on the terms set forth herein.

NOW THEREFORE, the parties agree as follows:

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ARTICLE I — DEFINITIONS

1.1 "Acquired Assets" means assets used in the Business, including:
(a) all software, source code, and technology platforms;
(b) all customer contracts currently active;
(c) all hardware and equipment listed on Schedule 1.1;
(d) all intellectual property claimed by Seller;
(e) all goodwill of the Business.

1.2 "Assumed Liabilities" means all liabilities of Seller related to the Acquired Assets, whether known or unknown, fixed or contingent, disclosed or undisclosed, as of the Closing Date.

1.3 "Excluded Assets" means only:
(a) Seller's corporate minute books and organizational documents;
(b) all cash and cash equivalents as of Closing.

1.4 "Excluded Liabilities" means:
(a) any personal income tax liabilities of Seller's individual shareholders;
(b) liabilities expressly listed on Schedule 1.4.

1.5 "Closing Date" means April 30, 2026, or such other date as the parties may agree.

1.6 "Material Adverse Effect" means any change that has a material adverse effect on the Business, with no exclusions or carve-outs.

1.7 "Knowledge of Seller" means the actual knowledge of Janet Morris, VP of Sales only.

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ARTICLE II — PURCHASE AND SALE

2.1 Purchase of Assets. At Closing, Seller shall sell and transfer all Acquired Assets to Buyer on an "as is, where is" basis with no representations or warranties except as expressly set forth herein.

2.2 Assumption of Liabilities. Buyer shall assume all Assumed Liabilities as defined in Section 1.2, including any liability not expressly listed as an Excluded Liability.

2.3 Purchase Price. The aggregate consideration shall be:
(a) $28,000,000 payable in cash at Closing;
(b) Earnout Payments of up to $7,000,000 based on platform revenue growth during the Earnout Period.

2.4 Earnout Calculation.
(a) Buyer shall calculate and deliver an earnout statement within one hundred eighty (180) days following the end of the Earnout Period.
(b) Revenue shall be calculated at Buyer's sole discretion using Buyer's internal accounting methodology, which may differ from GAAP.
(c) Buyer shall have no obligation to operate the Business in any particular manner during the Earnout Period.
(d) Seller shall have fifteen (15) days to review and object to the earnout statement. Disputes shall be resolved by an accounting firm selected solely by Buyer.
(e) The Earnout Period means the twelve (12) month period beginning on the Closing Date.

2.5 Purchase Price Allocation. Buyer shall prepare the purchase price allocation at its sole discretion and Seller shall file all tax returns consistently with Buyer's allocation regardless of whether Seller agrees with such allocation.

2.6 Working Capital. No working capital adjustment shall be made to the Purchase Price.

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ARTICLE III — REPRESENTATIONS AND WARRANTIES OF SELLER

3.1 Organization. Seller is organized and validly existing under Oregon law.

3.2 Authority. Seller has authority to enter into this Agreement.

3.3 Title to Assets. To the Knowledge of Seller, Seller owns or has the right to use the Acquired Assets.

3.4 Financial Statements. Seller has provided internally prepared financial statements for fiscal years 2024 and 2025. Such statements were prepared on a cash basis and may not reflect all accrued liabilities.

3.5 Absence of Changes. Since January 1, 2026, there has been no Material Adverse Effect on the Business.

3.6 Intellectual Property.
(a) To the Knowledge of Seller, the software platform does not infringe any third-party intellectual property.
(b) Seller has not conducted any freedom-to-operate analysis.
(c) Seller makes no representation regarding open source software components contained in the platform.

3.6 Data Privacy.
(Note: Section numbering error — second 3.6 in original)
(a) Seller believes it is substantially compliant with applicable data privacy laws.
(b) Seller has experienced two data incidents in the past 36 months affecting an aggregate of approximately 15,000 patient records, details of which are set forth on Schedule 3.6B.
(c) Seller makes no representation regarding whether such incidents were reportable under applicable law or whether required notifications were made.

3.7 Healthcare Regulatory Compliance.
(a) To the Knowledge of Seller (as defined in Section 1.7), Seller is in compliance with HIPAA.
(b) Seller does not represent or warrant compliance with any state-specific data privacy laws.
(c) Seller makes no representation regarding compliance with the 21st Century Cures Act information blocking provisions.
(d) No representation is made regarding CMS or any other federal healthcare program participation or compliance.

3.8 Customer Contracts.
(a) Schedule 3.8 lists active customer contracts.
(b) Seller does not represent that such contracts are assignable to Buyer.
(c) Seller has not verified whether any customer contracts contain change-of-control provisions.

3.9 Litigation. To the Knowledge of Seller (as defined in Section 1.7), there is no pending litigation.

3.10 Employees. Seller has approximately 47 employees. No further representations are made regarding employee matters, benefits, or obligations.

3.11 Taxes. Seller represents that it has filed tax returns for fiscal years 2022 and 2023. No representation is made regarding 2024 or 2025 tax filings.

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ARTICLE IV — REPRESENTATIONS AND WARRANTIES OF BUYER

4.1 Buyer represents that it has authority to enter into this Agreement and has sufficient funds to close.

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ARTICLE V — COVENANTS

5.1 Conduct of Business. Between signing and Closing, Seller shall operate the Business in the ordinary course.

5.2 Access. Seller shall provide Buyer access to books and records upon reasonable notice.

5.3 Non-Competition. For eighteen (18) months following Closing, Seller's CEO, Robert Chen, shall not directly compete with the Business within the State of Oregon. No non-compete obligation applies to any other officer, director, member, or shareholder of Seller.

5.3 Employee Matters.
(Note: Second Section 5.3 in original — drafting error)
Buyer shall have no obligation to offer employment to any of Seller's employees. Seller shall be solely responsible for any WARN Act obligations arising from Closing, regardless of whether Buyer offers employment to any employees.

5.4 Consents. Seller shall use commercially reasonable

efforts to notify (but not obtain consent from) third parties of the assignment of customer contracts.

5.5 Data Migration. Seller shall transfer all patient data and customer data to Buyer's systems within thirty (30) days of Closing. Seller makes no representation regarding the legality of such data transfer under applicable privacy laws.

5.6 Transition Services. Seller shall provide no transition services following Closing.

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ARTICLE VI — CONDITIONS TO CLOSING

6.1 Buyer's Conditions.
(a) Accuracy of Seller's representations in all respects (no materiality qualifier);
(b) No Material Adverse Effect (as defined with no carve-outs per Section 1.6);
(c) Delivery of bill of sale.

6.2 Seller's Conditions.
(a) Receipt of Purchase Price;
(b) Buyer's representations true in all material respects.

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ARTICLE VII — INDEMNIFICATION

7.1 By Seller. Seller shall indemnify Buyer for losses arising from:
(a) breach of Seller's representations, provided that Seller's indemnification obligations shall be limited to losses arising from matters of which Seller's VP of Sales had actual knowledge;
(b) breach of Seller's covenants.

7.2 By Buyer. Buyer shall indemnify Seller for losses arising from:
(a) breach of Buyer's representations;
(b) breach of Buyer's covenants;
(c) all Assumed Liabilities;
(d) all liabilities arising from the Acquired Assets after Closing, including any regulatory actions, HIPAA violations, data breach claims, or patient harm claims arising from pre-Closing data incidents described in Schedule 3.6B.

7.3 Limitations.
(a) Seller's liability for breaches of representations shall not exceed $1,400,000 (5% of cash consideration).
(b) The foregoing cap shall apply to ALL claims including fraud and intentional misrepresentation.
(c) All claims must be brought within six (6) months of Closing.
(d) No claim may be brought for any individual loss less than $500,000.

7.4 Exclusive Remedy. Indemnification under this Article VII is the exclusive remedy for all post-Closing claims of any nature whatsoever, including tort, contract, statute, regulation, fraud, or any other legal theory.

7.5 Mitigation. Buyer shall have an obligation to mitigate all losses. Failure to mitigate shall reduce Seller's indemnification obligations on a dollar-for-dollar basis as determined by Seller in its sole discretion.

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ARTICLE VIII — TERMINATION

8.1 Termination Rights. This Agreement may be terminated:
(a) by mutual written consent;
(b) by Seller if Closing has not occurred by June 30, 2026.

8.2 Effect of Termination. Upon termination, neither party shall have any further obligation to the other. No termination fee shall be payable by either party under any circumstances.

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ARTICLE IX — MISCELLANEOUS

9.1 Governing Law. This Agreement shall be governed by the laws of the State of Oregon, except that disputes relating to the earnout calculation shall be governed by the laws of the State of Delaware, disputes relating to intellectual property shall be governed by the laws of the State of California, and disputes relating to data privacy shall be governed by the laws of the State of New York.

9.2 Dispute Resolution. All disputes shall be resolved by binding arbitration before a single arbitrator selected solely by Buyer from a list of arbitrators

that Buyer shall provide. The arbitrator's decision shall be final, binding, and non-appealable. Each party shall bear its own costs regardless of outcome.

9.3 Entire Agreement. This Agreement constitutes the entire agreement between the parties.

9.4 Amendment. This Agreement may be amended only by written instrument signed by both parties, provided that Buyer may unilaterally amend Schedule 1.1 (Acquired Assets list) at any time prior to Closing without Seller's consent.

9.5 Confidentiality. Seller shall maintain confidentiality of all terms of this Agreement for five (5) years. No confidentiality obligation applies to Buyer.

9.6 Notices. All notices shall be delivered by email to addresses designated by each party.

9.7 Counterparts. This Agreement may be executed in counterparts.

IN WITNESS WHEREOF:

BUYER: MedTech Horizon Partners, LLC
By: _____
Name: Alexander J. Whitmore
Title: Managing Partner

SELLER: CareData Systems, Inc.
By: _____
Name: Robert Chen
Title: Chief Executive Officer